

		Code § 1033.5(a)(3) (<i>italics added</i>). Cohen’s request to tax costs incurred for a cancelled deposition and for video recording of depositions is denied. <u>Growthpoint shall recover \$177,771.56 in deposition costs from Cohen.</u> Growthpoint Global, Inc. to give notice.
5	Escorcía v. The Foster Printing Company, Inc. 2023-01303441	<u>Plaintiff’s Motion for Final Approval of Class</u> Plaintiff did not file the supplemental declaration ordered by the court in the August 27, 2026 order. ROA 141. Accordingly, the hearing on plaintiff’s motion for final approval of a class action and PAGA settlement is continued to <u>January 28, 2027 at 2:00 p.m.</u> in Department CX105. Plaintiff is ordered to file the supplemental declaration described in the court’s August 27, 2026 order at least 9 court days before the hearing. Clerk to give notice.
6	Jee v. Eplex Entertainment, Inc. 2023-01336144	<u>Plaintiff Heili Jee’s Motion to Compel Deposition</u> Plaintiff Heile Jee moves to compel Hwami Lee to appear for deposition. No oppositions have been filed. For the following reasons, plaintiff’s motion is granted. Plaintiff asserts Lee is defendant Eplex Entertainment, Inc.’s Chief Executive Officer, Secretary and Chief Financial Officer. Brief (ROA 286) at 3:20-21. Plaintiff provides no evidence supporting this assertion, but defendant did not file an opposition and thus has not disputed plaintiff’s representation. Service of a deposition notice on a corporate party is effective to require “an officer, director, managing agent, or employee of a party” to attend and testify at a deposition. Civ. Proc. Code § 2025.280. On March 19, 2026 plaintiff served defendant’s counsel with a deposition notice for Lee; plaintiff noticed the deposition for April 21, 2026. Azat Decl. (ROA 286) Ex. B. Lee did not serve objections to the deposition notice, did not move to quash the notice, did not move for a protective order and did not appear for the deposition. <i>Id.</i> ¶¶ 6-7. Civil Procedure Code section 2025.450(a) states: “If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Code Civ. Proc. § 2025.450. As noted, no oppositions to plaintiff’s motion have been filed. Neither defendant nor anyone else has provided any reasons

		plaintiff's motion should not be granted. Plaintiff's motion to compel Lee to appear for deposition is granted. Hwami Lee is ordered to appear for deposition on or before <u>October 1, 2026</u>. In addition to Lee's testimony, plaintiff's notice of Lee's deposition sought production of 189 categories of documents. Plaintiff does not move to compel production of the documents, however. See, e.g., Notice of Motion (ROA 286) at 1:22-23; Motion (ROA 286) at 3:26, 6:22-23. The court's order therefore is limited to compelling Lee to appear for deposition and testify. Plaintiff to give notice. <u>Plaintiff Heile Jee's Motion to Deem Requests for Admissions Admitted</u> Plaintiff Heile Jee moves for an order deeming plaintiff's Requests for Admissions (Set Two) Nos. 39 through 44 to defendant Eplex Entertainment, Inc. admitted. Plaintiff asserts plaintiff served defendant with the Requests for Admissions on March 30, 2026. Plaintiff's counsel states the Requests for Admissions and the proof of service are attached as Exhibit 1 to counsel's declaration. ROA 290. Counsel's declaration does not contain an Exhibit 1, and the court has been unable to locate the Requests for Admissions and proof of service elsewhere in plaintiff's motion papers. The court accordingly lacks evidence from which it can determine whether and when plaintiff served defendant with the Requests for Admissions, and whether the Requests for Admissions plaintiff states plaintiff served are the requests plaintiff seeks to deem admitted. Without evidence that, <i>inter alia</i>, plaintiff served defendant with the Requests for Admissions, and evidence that defendant's time to respond to the Requests for Admissions has elapsed without response, plaintiff's motion is denied. Plaintiff also states plaintiff lodged Exhibit E, a USB drive, with the court. ROA 280; ROA 290 at 6:3-4. The court did not receive a USB drive. Plaintiff to give notice.
7	Martin v. RonDeux Relocation Services, Inc. 2024-01436412	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of an \$180,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 enhancement award to plaintiff; \$54,000.00 for attorneys' fees; \$14,149.55 for attorneys' costs; \$4,143.00 for settlement administration fees; and \$107,707.45 total PAGA penalties (\$70,009.84 to LWDA).